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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA  
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,**  
**PLAINTIFF,**

**v.**

CSAA Insurance Exchange;  
and DOES 1 through 50, inclusive;

**DEFENDANTS**

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**Case No.: CGC-25-631802**

**SUPPLEMENTAL RJN**

**(REYNA CONDUCT RECORDS)**

**Hearing:** June 24, 2026

**Time:** 9:00 a.m.

**Dept.:** 302

**Judge:** Hon. Joseph M. Quinn

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-  
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Evidence Code section 453; Evidence Code sections 452, subdivision (d) and 452, subdivision (h); California Rules of Court, rule 3.1113, subdivision (l); and California Rules of Court, rule 3.1306, subdivision (c).
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.

1 4. The Court’s authority to consider the substance is under *Sosinsky v. Grant* (1992) 6 Cal.App.4th  
2 1548, 1564 to 1569; and *Aaronoff v. Martinez-Senftner* (2006) 136 Cal.App.4th 910, 919.

3 5. This paper is timely filed for the June 24, 2026 hearing under Code of Civil Procedure section  
4 1005, subdivision (b), and Department 302’s May 13, 2026 scheduling order.

5 **I. REQUEST UNDER EVIDENCE CODE SECTIONS 452, SUBDIVI-**  
6 **SIONS (D) AND (H), AND 453**

7 Plaintiff, Franciscus Dylan Rosario, respectfully requests that the Court take judicial notice, under  
8 Evidence Code sections 452, subdivisions (d) and (h), and 453, of the existence, filing, contents,  
9 legal effect, and adopted litigation position reflected in the following defense conduct records from  
10 the underlying trial *Rosario v. Abdelhalim* (CGC-21-594102) and related proceedings, lodged as  
11 Exhibits R-1 through R-6 in the parallel appendix volume described in Section VII:

12 **1. Anti-SLAPP prong 2 evidence (802 Anti-SLAPP MPA, April 9, 2026).**

13 **Exhibit R-1.** Compex Deposition Subpoena for Production of Business Records to SFPD, Order  
14 No. CA1147102-021, dated February 1, 2024, in CGC-21-594102. Noticed fact: existence, filing,  
15 contents, and legal effect of defense counsel’s institutional subpoena for the same police-record  
16 nucleus CSAA now treats as available in 802.

17 **Exhibit R-3.** MIL No. 17 (911 call provenance), filed January 17, 2025, in CGC-21-594102, FSX  
18 Transaction No. 80936053, clerk’s transcript pages 238 through 241. Noticed fact: existence, con-  
19 tents, and legal effect of defense’s prior position that the 911 log and recording were not produced  
20 in discovery and had unknown provenance.

21 **Exhibit R-4.** MIL No. 6 clerk excerpt, filed January 17, 2025, in CGC-21-594102, FSX Trans-  
22 action No. 80936030, clerk’s transcript pages 149 through 151. Noticed fact: existence, contents,  
23 and legal effect of defense’s prior position excluding silent-witness materials not produced in dis-  
24 covery.

25 **Exhibit R-6.** CSAA denial letter dated February 25, 2021, from CSAA Insurance Exchange to  
26 Plaintiff. **Noticed fact limited to existence and date of issuance only** for this RFJN. Plaintiff  
27 reserves Evidence Code section 1220 party-opponent use for the merits brief.

28 **2. Cross-case judicial estoppel hook (802 Anti-SLAPP MPA and 802 Demurrer MPA).**

1 **Exhibits R-1, R-2, R-3, R-4.** Together with filing item 04 (801 admissions) and filing item 07  
2 (verbatim contradiction table), these records show CSAA's adopted litigation positions in the un-  
3 derlying trial court concerning the same silent-witness nucleus CSAA now invokes in 802. **Exhibit**  
4 **R-2** (RT Vol. 7, Apr. 16, 2025): printed RT page 157, lines 7 through 16 (Ms. Navaratnasingham:  
5 defense subpoenaed police records and did not receive the supplemental as part of that subpoena  
6 response). Noticed fact: adopted litigation position only.

7 **3. Demurrer rebuttal (802 Demurrer MPA, April 13, 2026).**

8 **Exhibits R-1 and R-6.** R-1 shows defense counsel's institutional procurement effort for police  
9 records before trial. R-6 shows the date CSAA issued its coverage denial. Noticed facts: exis-  
10 tence, filing, contents, and legal effect (R-1); **existence and date only** (R-6). These rebut the 802  
11 demurrer's premise that CSAA lacked notice or access to the nucleus it now characterizes as fully  
12 investigated.

13 **4. Section 436 motion-to-strike rebuttal (802 CCP 436 MPA, April 22, 2026).**

14 **Exhibits R-1, R-3, R-4.** The noticed MIL positions and subpoena record contradict the 802 section  
15 436 motion's characterization of Plaintiff's filings as improper collateral attacks on completed  
16 investigation. Noticed fact: existence, contents, and legal effect.

17 **5. Privity and counsel identity (all three 802 motions).**

18 **Exhibit R-1.** The Complex subpoena identifies Alberto Reyna (SBN 347323), Phillips, Spallas  
19 and Angstadt, LLP, on the face of the instrument. Noticed fact: counsel of record and institutional  
20 defense identity on the subpoena.

21 **6. Trial-record contradictions, Layer B (802 Anti-SLAPP Reply and 802 Demurrer MPA).**

22 **Exhibits R-2, R-3, R-4, R-5.** RT and MIL excerpts show defense's prior truth-claims that silent-  
23 witness materials were not produced, were of unknown provenance, or were outside subpoena  
24 compliance, inconsistent with 802's investigation-completeness arguments. **Exhibit R-5** (Feb. 18,  
25 2025 hearing RT excerpt, PDF pp. 139 to 141). Noticed fact: adopted litigation position and  
26 contents of the noticed records.

27 **Exhibit R-7** (Reyna 2024 discovery letter) is omitted from this request and not relied on for relief  
28 at the June 24, 2026 hearing.

1 The noticed fact as to each item above is that CSAA and its defense team made the identified  
2 litigation-position statements, sought relief based on them, or acted institutionally through the  
3 identified instruments. Plaintiff does not request that the Court take notice that every factual asser-  
4 tion embedded in those statements is true.

## 5 **II. SCOPE OF NOTICE REQUESTED**

6 Plaintiff requests judicial notice of the existence, filing, contents, and legal effect of the noticed  
7 Reyna conduct records, including the adopted litigation positions reflected in Exhibits R-1 through  
8 R-6.

9 Plaintiff does not request judicial notice of the truth of every factual recital contained inside those  
10 records. (See *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564 to 1569; *Aaronoff v. Martinez-*  
11 *Senftner* (2006) 136 Cal.App.4th 910, 919 [judicial notice extends to existence of court records and  
12 orders, not to truth of disputed factual assertions therein].) The cross-case judicial estoppel and  
13 inconsistency analysis supported by the accompanying memorandum (filing item 02) and verbatim  
14 table (filing item 07) is a separate equitable inquiry.

15 The noticed fact is that CSAA and its defense team made the litigation-position statements, sought  
16 relief based on them, or acted through the identified instruments. Plaintiff does not request notice  
17 that every factual assertion embedded in those statements is true. Plaintiff requests notice of the  
18 existence, contents, legal effect, and adopted litigation position reflected in the records.

## 19 **III. AUTHORITIES SUPPORTING JUDICIAL NOTICE**

20 **Evidence Code section 452, subdivision (d).** “Records of (1) any court of this state or (2) any  
21 court of record of the United States or of any state of the United States” are subject to judicial  
22 notice. Exhibits R-2 through R-5 are court reporter’s transcripts and clerk’s transcript excerpts  
23 from CGC-21-594102. Exhibits R-1 and R-6 are filed or served instruments in the litigation chain.

24 **Evidence Code section 452, subdivision (h).** “Facts and propositions that are not reasonably sub-  
25 ject to dispute and are capable of immediate and accurate determination by resort to sources of  
26 reasonably indisputable accuracy.” The existence and contents of the noticed records are indepen-  
27 dently verifiable from the lodged appendix volume and from the SFTC portal where applicable.

28 **Evidence Code section 453.** Plaintiff has provided each adverse party with sufficient notice of the

request, through this filing and through service of the accompanying notice and memorandum, and has supplied the Court with sufficient information to enable it to take judicial notice of each matter. **Evidence Code section 451, subdivision (a).** To the extent that any portion of the noticed records reflects the language of California statutes, decisional rules, or rules of court, judicial notice is also proper as a matter of law.

**California Rules of Court, rule 3.1306(c).** Plaintiff lodges the parallel appendix volume under the Court's lodging procedures for voluminous exhibits.

#### **IV. RELATIONSHIP TO FILING ITEMS 02, 04, AND 07**

Filing item 04 (Supplemental RFJN of 801 filings and May 12 Order) covers **what CSAA said and won in CGC-25-631801**. This supplemental RFJN (filing item 04b) covers **the underlying conduct and trial-court positions CSAA characterized as defense-team litigation conduct in 801 and now re-characterizes in 802**.

The accompanying memorandum (filing item 02) applies cross-case judicial estoppel to bar inconsistent 802 arguments. The verbatim table (filing item 07) pairs each noticed 801 admission with the inconsistent 802 position. Exhibits R-1 through R-6 supply the Layer B trial-record foundation for the contradiction nodes that depend on MIL, subpoena, RT, and denial-letter conduct, not only on the 801 motion papers.

This Court need not decide the truth of any disputed factual recital in the noticed records. The Court is asked only to notice the existence, filing, contents, and legal effect of the records, and then to apply judicial estoppel and the memorandum's lock-points at the June 24, 2026 hearing on the 802 Anti-SLAPP, demurrer, and section 436 motions.

#### **V. PROPOSED ORDER LANGUAGE**

Plaintiff respectfully proposes that the Court enter the following:

"The Court takes judicial notice under Evidence Code sections 452, subdivisions (d) and (h), and 453, of Exhibits R-1 through R-6 to Plaintiff's Supplemental Request for Judicial Notice of Reyna Conduct Records. Judicial notice is taken of the existence, filing, contents, and legal effect of the noticed records, and of the adopted litigation positions reflected therein, and not of the truth of any disputed factual recital within those records except as otherwise ruled on the merits. This

1 judicial-notice ruling supports the Court’s analysis in connection with Plaintiff’s opposition to the  
2 802 Anti-SLAPP, demurrer, and section 436 motions.”

### 3 **VI. SERVICE**

4 This Request and the noticed exhibits are served on Defendant’s counsel of record (Mark G. Tapp,  
5 Tyler J. O’Connell, Mason Schubert, and Sarah J. Blithe, Porter Scott, P.C.) by electronic mail per  
6 Code of Civil Procedure section 1010.6 and California Rules of Court, rule 1.21, with a Proof of  
7 Service (POS-050) filed contemporaneously.

### 8 **VII. EXHIBIT ATTACHMENT NOTE**

9 Exhibits R-1 through R-6 are tendered in the parallel appendix volume **802-REYNA-CONDUCT-**  
10 **APPENDIX-CGC25-631802.pdf**, lodged under the accompanying Notice of Lodging (filing item  
11 10). Where a docketed PDF is not retrievable from the SFTC portal in time for the LR 2.7B  
12 chambers floor, Plaintiff will lodge with chambers a placeholder cover sheet identifying the noticed  
13 record by docket sequence, FSX transaction, or Compex order number and substituting the verified  
14 PDF when retrieved.

Dated: June 24, 2026



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